

**BEFORE THE
FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES**

AMAN KAUSHIK,

DOCKET NO. 26-10

Complainant,

September 14, 2026

v.

SFL WORLDWIDE LLC,

Respondent.

**COMPLAINANT'S MOTION FOR ENTRY OF A SCHEDULING ORDER, TO
COMPEL RESPONDENT'S FULL COMPLIANCE WITH DISCOVERY
OBLIGATIONS, AND FOR RULING ON COMPLAINANT'S PENDING MOTION FOR
WAIVER OF FILING FEE**

Complainant Aman Kaushik, proceeding pro se, respectfully moves the Court for the following relief: (I) entry of a scheduling order governing the completion of discovery in this proceeding; (II) an order addressing Respondent SFL Worldwide LLC's ("Respondent") pattern of untimely and initially noncompliant discovery conduct, including its Initial Disclosures and non-participation in the Joint Survey Report; and (III) a ruling on Complainant's Motion for Waiver of Filing Fee, filed May 27, 2026, which has now been pending for nearly sixteen weeks. In support, Complainant states as follows.

I. BACKGROUND

1. The Court's Initial Order, served July 1, 2026, directs that discovery "must be completed within 150 days of the service of a respondent's answer." 46 C.F.R. § 502.141(g). Respondent's Answer was served July 22, 2026. Accordingly, the 150-day discovery period expires on or about December 19, 2026, and that deadline is running irrespective of whether a separate scheduling order has issued.

2. The Initial Order further requires that Initial Disclosures be served within seven days of the Answer, 46 C.F.R. § 502.141(b), making Respondent's Initial Disclosures due July 29, 2026. The Initial Order also requires that discovery materials, including Initial Disclosures, be provided “in a word processing format” as per the Initial Order.
3. The Initial Order requires the parties to submit a Joint Status Report with a proposed discovery schedule within fifteen days of the Answer. 46 C.F.R. § 502.141(h). Complainant attempted to confer with Respondent on August 4, 2026, at 7:30 a.m. EDT, proposing a discovery schedule and requesting a response by end of day. Respondent did not respond.
4. Having received no response, Complainant filed a Joint Status Report alone on August 5, 2026, which: (a) proposed a discovery schedule completing discovery by December 15, 2026, within the 150-day period; (b) documented that Respondent's Initial Disclosures, due July 29, 2026, had not been served; (c) documented that Respondent, after Complainant's written inquiry, represented it would serve its Initial Disclosures by August 4, 2026, and then missed that self-selected deadline date as well; and (d) reserved Complainant's right to seek an order compelling compliance under 46 C.F.R. § 502.150 should the Initial Disclosures remain outstanding. Complainant further notes that this delay occurred notwithstanding Respondent's own opposition, filed July 28, 2026, to Complainant's Renewed Motion for Extension of Time, in which Respondent resisted affording Complainant additional time in this proceeding.
5. Respondent ultimately served a copy of its Initial Disclosures by email on August 6, 2026 — eight days after the July 29, 2026 deadline — in PDF format. On August 18, 2026, Complainant notified Respondent that PDF format did not satisfy the Initial Order's requirement that discovery responses be served “in a word processing format” and requested that Respondent re-serve its Initial Disclosures accordingly. Respondent re-served its Initial Disclosures in Microsoft Word format on August 19, 2026 — twenty-one days after the original deadline, and only after Complainant identified the format deficiency. Respondent's Initial Disclosures were therefore both untimely and, for three weeks, served in a format the Initial Order does not permit.

6. Respondent has never filed a Joint Status Report of its own, and has never otherwise provided its position on a discovery schedule. Respondent was served with a copy of Complainant's August 5, 2026 Joint Status Report at the time of filing, and had every opportunity from that date forward to respond, propose an alternative schedule, or otherwise participate in the process the Initial Order requires. As of the date of this motion, Respondent has done none of these things. Respondent has therefore never provided any position on the record regarding the discovery schedule the Court is being asked to adopt.
7. As of the date of this motion, nearly six weeks after the August 5, 2026 Joint Status Report was filed, the Court has not entered a scheduling order and has not ruled on the discovery schedule proposed therein. The Commission's public docket for this proceeding reflects no order or filing of any kind since August 5, 2026, and reflects no Joint Status Report or other filing from Respondent at any point in this proceeding.
8. The schedule proposed in Complainant's August 5, 2026 Joint Status Report set September 8, 2026 as the date by which written discovery was to be served. That date has now passed. Because the Court has not entered an order adopting, modifying, or rejecting the proposed schedule, the parties remain without clarity as to whether that date, or any other deadline in the proposed schedule, was ever binding, and written discovery has not yet been served. Complainant respectfully requests that the Court act on the proposed schedule immediately, so that both parties have clear and enforceable discovery deadlines going forward, and so that written discovery may proceed without further delay.
9. Separately, Complainant's Motion for Waiver of Filing Fee, filed May 27, 2026, and supported by Exhibit R, has now been pending for approximately sixteen weeks without a ruling. Complainant has followed up in writing on June 25, July 2, July 23, and August 14, 2026, without receiving a substantive response.
10. Complainant is aware that Respondent has separately expressed interest, through the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS), in continuing to pursue mediation. Complainant notes that this proceeding is not stayed during the dispute resolution process. 46 C.F.R. § 502.64(c). Respondent's interest in mediation

accordingly provides no basis to further delay compliance with the Initial Order's discovery deadlines.

II. ARGUMENT

A. The Court should enter a scheduling order.

The Initial Order requires a discovery schedule that completes discovery within 150 days of the Answer and permits issuance of an initial decision within one year. 46 C.F.R. § 502.141(g). Complainant proposed such a schedule in the August 5, 2026 Joint Status Report. Respondent did not respond to Complainant's conferral effort, did not propose an alternative schedule, and has not opposed Complainant's proposed schedule in the nearly six weeks since it was filed. The Commission's public docket confirms that no order has been issued and no competing filing has been made by Respondent. With the 150-day discovery period continuing to run, and with the first milestone of Complainant's proposed schedule — service of written discovery, originally proposed for September 8, 2026 — having already passed without any order from the Court, Complainant respectfully requests that the Court act immediately, either by adopting the schedule proposed in the August 5, 2026 Joint Status Report as unopposed, or by setting a status conference and issuing such other scheduling instructions as the Court deems appropriate, consistent with 46 C.F.R. § 502.141(i).

B. The Court should address Respondent's continuing noncompliance with the Initial Order's discovery and joint-status obligations.

Respondent's Initial Disclosures, due July 29, 2026, were not served until August 6, 2026, and were not served in the word-processing format required by the Initial Order until August 19, 2026 — three weeks after the deadline, and only after Complainant identified the deficiency. Separately, and more significantly, Respondent has never filed a Joint Status Report or otherwise placed any position on the record regarding the discovery schedule. Complainant attempted to confer with Respondent on August 4, 2026, and, having received no response, filed a Joint Status Report alone the following day. Nearly six weeks have now passed since that filing, and Respondent has still not filed a Joint Status Report of its own, proposed an alternative schedule, or otherwise placed any position on the record regarding discovery. As a result, the schedule now before the Court

reflects only Complainant's position; Respondent has had, and continues to have, every opportunity to be heard on this issue and has simply declined to participate.

Complainant respectfully notes this pattern for the Court's consideration, particularly in light of Respondent's own opposition to Complainant's request for additional time earlier in this proceeding. Complainant requests that the Court take notice of this conduct in setting the discovery schedule and in evaluating any future request by Respondent for an extension of time, consistent with the Initial Order's instruction that “requests to extend established deadlines will be reviewed for good cause even if parties agree to the extension.” Initial Order ¶ 10.

C. The Court should rule on Complainant's pending Motion for Waiver of Filing Fee.

Complainant's Motion for Waiver of Filing Fee has been pending since May 27, 2026, without a ruling, despite four written follow-ups. Complainant respectfully requests a ruling on this motion so that Complainant's ability to proceed in this matter is no longer uncertain.

III. RELIEF REQUESTED

For the foregoing reasons, Complainant respectfully requests that the Court:

- Enter a scheduling order for the completion of discovery in this proceeding, adopting the schedule proposed in Complainant's August 5, 2026 Joint Status Report or such other schedule as the Court deems appropriate, and do so immediately, as the first milestone of the proposed schedule — service of written discovery, originally proposed for September 8, 2026 — has already passed without any order from the Court;
- Take notice of Respondent's untimely and initially noncompliant service of its Initial Disclosures, and Respondent's continued failure to participate in the joint-status-report process, in setting the discovery schedule and in evaluating any future request by Respondent for additional time;
- Rule on Complainant's Motion for Waiver of Filing Fee, filed May 27, 2026; and
- Grant such other and further relief as the Court deems just and proper.

Respectfully submitted,

/s/ Aman Kaushik

Aman Kaushik, Complainant, Pro Se

Docket No. 26-10

CERTIFICATE OF SERVICE

I hereby certify that on September 14, 2026, I served a copy of the foregoing “Complainant's Motion for Entry of a Scheduling Order, to Compel Respondent's Full Compliance with Discovery Obligations, and for Ruling on Complainant's Pending Motion for Waiver of Filing Fee” upon the following parties by electronic mail, simultaneously with filing with the Office of the Secretary:

1. SFL Worldwide LLC, Respondent — Email: naman@sflworldwide.com
2. Office of Administrative Law Judges, Federal Maritime Commission — Email: judges@fmc.gov
3. Office of the Secretary, Federal Maritime Commission — Email: secretary@fmc.gov

/s/ Aman Kaushik

Aman Kaushik

Complainant, Pro Se